

INTRODUCTORY REMARKS.

It will be readily observed by those members of the Profession, whose daily and nearly sole practice is in the Court of Chancery, that this Manual will afford them little more than a more convenient mode of reference to materials with which they are already familiar. But even to these practitioners this ready means of reference may be found of some service.

To other members of the Profession,—to the country practitioners, and to those who have not hitherto been much in this Court—the arrangement of the Rules of the Court in a compendious shape, as is here attempted, would seem necessary for the purpose of enabling them, without much discouraging inconvenience and trouble, to conduct Causes in Equity. The Rules, or Orders, by which the Practice was governed, were to be searched for among the English orders passed prior to March, 1837, the date of our first Chancery Act—among the several Orders of this Court issued prior to the Act of 1849, excepting out of them such as are abrogated by the Orders of 1850; and with them were to be incorporated the Orders of 1849, 1850, and 1851. It was thought, that to arrange these with reference to their subject matter would be useful to the practitioner and the student; and especially to those who, practising out of Toronto, had not hitherto been enabled to attend personally to the conduct of Equity Causes, but to whom the practice is now opened by the Orders of 1851, which are published at the close of this volume. With respect to these last mentioned Orders, it was the intention to incorporate them with the others according to their subject matter; but, as they have not been promulgated so early as was expected, and the writer having